

APPEAL INDEX FOR CASE NUMBER:

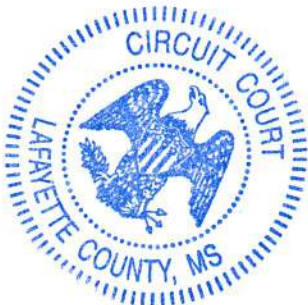
L17-233
JUDGE John Kelly Luther

MATTHEW REARDON
VS.

PLAINTIFF COUNSEL
Kristian McCray
DEFENDANT COUNSEL

HABEAS CORPUS

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Sam Dutton
CERTIFIED COPY
CIRCUIT CLERK, LAFAYETTE COUNTY
11/02/20

COVER SHEET
Civil Case Filing Form
(To be completed by Attorney/Party
Prior to Filing of Pleading)

Mississippi Supreme Court
Administrative Office of Courts

Form AOC/01
(Revised 1/1/2001)

Court Identification

Docket Number

363C-I

County # Judicial Court ID
District (CH, CI, CO)

060817

Month Date Year

This area to be completed by clerk

Year

Docket Number

2017

233

Local Docket ID

Case Number if filed prior to 1/1/94

Short Style of Case:

IN THE CIRCUIT COURT OF LAFAYETTE COUNTY

Party Filing Initial Pleading: Type/Print Name

KRISTIAN A. MCCRAY

Check (✓) if Not an Attorney

Check (✓) if Pro Hac Vice

Signature

MS Bar No. 104280

Compensatory Damages Sought: \$

Punitive Damages Sought: \$

Is Child Support contemplated as an issue in this suit?

Yes No

If "yes" is checked, please submit a completed Child Support
Information Sheet with Final Decree/Judgment

PLAINTIFF - PARTY(IES) INITIALLY BRINGING SUIT SHOULD BE ENTERED FIRST (FIRST NAME IN SHORT STYLE) - ENTER ADDITIONAL PLAINTIFFS ON SEPARATE FORM

Individual REARDON

MATTHEW

Last Name

First Name

Maiden Name, if Applicable

Middle Init.

Jr/Sr/III/IV

Address of Plaintiff

Check (✓) if Individual Plaintiff is acting in capacity as Executor(trix) or Administrator(trix) of an Estate, and enter style:

Estate of

Check (✓) if Individual Plaintiff is acting in capacity as Business Owner/Operator (d/b/a) or State Agency, and enter entity:

D/B/A / Agency

Business

Enter legal name of business, corporation, partnership, agency - If Corporation, indicate state where incorporated

Check (✓) if Business Plaintiff is filing suit in the name of an entity other than the above, and enter below:

D/B/A:

DEFENDANT - NAME OF DEFENDANT (FIRST NAME IN SHORT STYLE) - ENTER ADDITIONAL DEFENDANTS ON SEPARATE FORM

Individual

Last Name

First Name

Maiden Name, if Applicable

Middle Init.

Jr/Sr/III/IV

Check (✓) if Individual Defendant is acting in capacity as Executor(trix) or Administrator(trix) of an Estate, and enter style:

Estate of

Check (✓) if Individual Defendant is acting in capacity as Business Owner/Operator (d/b/a) or State Agency, and enter entity:

D/B/A / Agency

Business

Enter legal name of business, corporation, partnership, agency - If Corporation, indicate state where incorporated

Check (✓) if Business Defendant is being sued in the name of an entity other than the above, and enter below:

D/B/A:

ATTORNEY FOR THIS DEFENDANT:

Bar No.

or Name:

Pro Hac Vice (✓)

In left hand column, check one (1) box that best describes
the nature of this suit. In right hand column check all
boxes which indicate secondary claims.

Business/Commercial

- ☐ Accounting (Business)
- ☐ Bankruptcy
- ☐ Business Dissolution - Corporation
- ☐ Business Dissolution - Partnership
- ☐ Debt Collection
- ☐ Employment
- ☐ Examination of Debtor
- ☐ Execution
- ☐ Foreign Judgment
- ☐ Garnishment
- ☐ Pension
- ☐ Receivership
- ☐ Replevin
- ☐ Stockholder Suit
- ☐ Other

Domestic Relations

- ☐ Child Custody/Visitation
- ☐ Child Support
- ☐ Contempt
- ☐ Divorce: Fault
- ☐ Divorce: Irreconcilable Differences
- ☐ Domestic Abuse
- ☐ Emancipation
- ☐ Modification
- ☐ Paternity
- ☐ Property Division
- ☐ Separate Maintenance
- ☐ Termination of Parental Rights
- ☐ UIFSA (formerly MRESA)
- ☐ Other

Contract

- ☐ Breach of Contract
- ☐ Installment Contract
- ☐ Insurance
- ☐ Product Liability under Contract
- ☐ Specific Performance
- ☐ Other

Probate

- ☐ Accounting (Probate)
- ☐ Birth Certificate Correction
- ☐ Commitment
- ☐ Conservatorship
- ☐ Guardianship
- ☐ Heirship
- ☐ Intestate Estate
- ☐ Minor's Settlement
- ☐ Muniment of Title
- ☐ Name Change
- ☐ Power of Attorney
- ☐ Testate Estate
- ☐ Will Contest
- ☐ Other

Statutes/Rules

- ☐ Bond Validation
- ☐ Civil Forfeiture
- ☐ Declaratory Judgment
- ☐ ERISA
- ☐ Eminent Domain
- ☐ Extraordinary Writ
- ☐ Federal Statutes
- ☐ Injunction or Restraining Order
- ☐ Municipal Annexation
- ☐ Racketeering (RICO)
- ☐ Railroad
- ☐ Seaman
- ☐ Other

Appeals

- ☐ Administrative Agency
- ☐ County Court
- ☐ Hardship Petition (Driver License)
- ☐ Justice Court
- ☐ MS Employment Security Comm'n
- ☐ Municipal Court
- ☐ Oil & Gas Board
- ☐ Workers' Compensation
- ☐ Other

Children and Minors - Non-Domestic

- ☐ Adoption - Noncontested
- ☐ Consent to Abortion for Minor
- ☐ Removal of Minority
- ☐ Other

Torts - Personal Injury

- ☐ Bad Faith
- ☐ Fraud
- ☐ Loss of Consortium
- ☐ Malpractice - Legal
- ☐ Malpractice - Medical
- ☐ Negligence - General
- ☐ Negligence - Motor Vehicle
- ☐ Products Liability
- ☐ Wrongful Death
- ☐ Other

Mass Tort

- ☐ Asbestos
- ☐ Chemical Spill
- ☐ Dioxin
- ☐ Hand/Arm Vibration
- ☐ Hearing Loss
- ☐ Radioactive Materials
- ☐ Other

Real Property

- ☐ Adverse Possession
- ☐ Ejectment
- ☐ Eminent Domain
- ☐ Judicial Foreclosure
- ☐ Lien Assertion
- ☐ Partition
- ☐ Receiver Appointment
- ☐ Tax Sale: Confirmation/Cancellation
- ☐ Title, Boundary &/or Easement
- ☐ Other

Civil Rights

- ☐ Elections
- ☐ Habeas Corpus
- ☐ Post Conviction Relief
- ☐ Prisoner
- ☐ Other

CERTIFIED COPY
CIRCUIT CLERK, LAFAYETTE COUNTY

IN THE CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI
FILED

MATTHEW REARDON

JUN 08 2017

Baretta Mosley
CIRCUIT CLERK

BY:  D.C.

CAUSE NO.: L17-233

IN RE: MOTION FOR HABEAS CORPUS

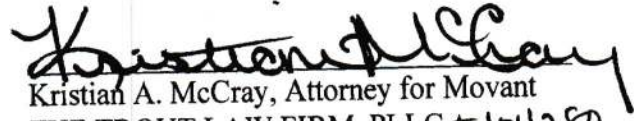
MOTION FOR WRIT OF HABEAS CORPUS SEEKING BAIL REDUCTION

COMES NOW, the Movant, Matthew Reardon, by and through counsel, Kristian A. McCray of the Trout Law Firm, PLLC, and makes this Motion for Writ of Habeas Corpus Seeking Bail Reduction, and for good cause shows the following:

1. Movant is illegally confined and restrained of liberty in the Lafayette County Detention Center with bail in the amount of \$150,000.
2. Movant confinement is illegal because bail is excessive, oppressive and beyond the financial means of Movant or her family and loved ones, in violation of the Eighth and Fourteenth Amendments to the United States Constitution and §§ 26 and 29 of the Mississippi Constitution.
3. Movant respectfully requests this Court, after receiving evidence, to reduce the amount of bail to a reasonable amount in order that Movant be granted opportunity to obtain release from incarceration.

WHEREFORE, PREMISES, CONSIDERED, Movant prays that the Court issues a Writ of Habeas Corpus to the Sheriff of Lafayette County, Mississippi, commanding production of the person of Matthew Reardon before this court instantler, then and there to show cause, if any there be, why Movant should not be discharged from such illegal confinement, or that Movant be allowed bail in a reasonable amount.

Respectfully submitted,



Kristian A. McCray, Attorney for Movant

THE TROUT LAW FIRM, PLLC #104280

2084 Old Taylor Road, Suite 106

Oxford, MS 38655

Tel: (662) 507-4304

Fax: (888) 869-8848

E-mail: mskristianm@gmail.com

AFFIDAVIT IN FORMA PAUPERIS

I, Matthew Reardon, by and through counsel, Kristian A. McCray of The Trout Law Firm, PLLC, depose and say that I am the Movant in this case. I further state that because of my poverty I am unable to pay the fees and costs of this proceeding and that I believe I am entitled to redress.



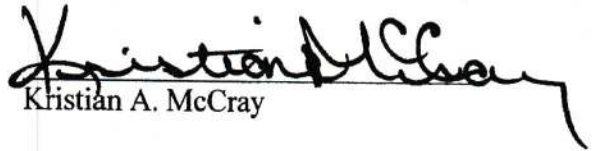
Kristian A. McCray, Attorney for Movant

CERTIFICATE OF SERVICE

I, Kristian A. McCray, certify that I delivered a true and correct copy of the above and foregoing Motion of Writ of Habeas Corpus and Affidavit in Forma Pauperis via electronic mail to the following individuals:

Mickey Mallette, Assistant District Attorney
District Attorney's Office
1301 Monroe Avenue
Oxford, MS 38655

So certified this the 5th day of June, 2017.


Kristian A. McCray

IN THE CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI
FILED

MATTHEW REARDON

JUN 08 2017

Baretta Mosley
CIRCUIT CLERK

CAUSE NO.: 17-233

BY: [Signature] D.C.

IN RE: MOTION FOR HABEAS CORPUS

ORDER ALLOWING MOVANT TO PROCEED *IN FORMA PAUPERIS*

Movant, Matthew Reardon, has filed an Affidavit requesting leave to proceed *in forma pauperis*. Based upon the Affidavit, the Court grants leave to the Movant to proceed *in forma pauperis* and the Movant's Motion for Habeas Corpus may be filed and received by the Clerk of Court.

IT IS SO ORDERED AND ADJUDGED this the 7th day of June, 2017.

[Signature]
CIRCUIT COURT JUDGE

Submitted by:

[Signature]
Kristian A. McCray, Attorney for Movant
THE TROUT LAW FIRM, PLLC 104280
2084 Old Taylor Road, Suite 106
Oxford, MS 38655
Tel: (662) 507-4304
Fax: (888) 869-8848
Email: mskristianm@gmail.com

FILE THIS THE 7 DAY OF
June, 2017
MINUTE BOOK 2017 PAGE 1131
BARETTA MOSLEY, CIRCUIT CLERK
BY B. Dunn D.C.

MATTHEW REARDON

VS

CAUSE NO: L17-233

ORDER OF DISMISSAL-STALE CASE

Pursuant to the provisions of Rule 2.02, Uniform Rules of the Circuit Court and Rule 41, Mississippi Rules of Civil Procedure, and for the reason that no step has been taken to prosecute or pursue this action for over one year IT IS, THEREFORE,

ORDERED AND ADJUDGED that this action be, and the same is hereby:

- (1) dismissed without prejudice; and
- (2) all costs accrued to the date hereof are hereby taxed against the Plaintiff; and
- (3) the Clerk of this Court shall mail a copy of this ORDER to the Attorneys of record, together with a certificate of service, and proper entry of same shall be entered on the docket; and
- (4) this ORDER OF DISMISSAL shall become effective (30) days from the ddate of the Clerk's certificate of service, UNLESS prior to expiration thereof, this action is re-instated upon the docket upon proper Motion filed in this action and an ORDER is entered granting same. If after expiration date there will ba a \$85.00 reinstatement fee.

ORDERED AND ADJUDGED this 30th day of November 2018

Andrew K. Humes

CIRCUIT COURT JUDGE

CLERK'S CERTIFICATE OF SERVICE

I hereby certify that I have hand delivered or mailed by U.S. Mail, First Class, prepaid, to:

NAME: Kristian McCray
 ADDRESS: Post Office Box 2532
 ADDRESS: _____
 ADDRESS: Oxford, MS 38655

NAME: _____
 ADDRESS: _____
 ADDRESS: _____

a true and correct copy of the above and foregoing ORDER OF DISMISSAL on this the 30th day of November 2018, and have made a proper entry of the same upon the docket.

BARETTA MOSLEY, CIRCUIT CLERK

BY: *S. Potts* D.C.

FILE THIS THE 30th DAY OF Nov, 20 18
 MINUTE BOOK CMB2 PAGE 275
 BARETTA MOSLEY, CIRCUIT CLERK
 BY *S. Potts* D.C.

